**NATIONAL COMPANY LAW TRIBUNAL**
**NEW DELHI BENCH (COURT- IV)**

**C.A.(CAA)-6/ND/2022**

**IN THE MATTER OF SCHEME OF AMALGAMATION :**

**AMONGST**

**MOCHIKO FOOTWEAR PRIVATE LIMITED**

**... Transferor Company**

**WITH**

**MOCHIKO SHOES PRIVATE LIMITED**

**...Transferee Company**

**AND**

**THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS**

**Order Delivered on:-28.01.2022**

**Section: 230 to 232 of the Companies Act, 2013**

**CORAM**

**SH. DHARMINDER SINGH, HON'BLE MEMBER (JUDICIAL)**
**MS. SUMITA PURKAYASTHA, HON'BLE MEMBER (TECHNICAL)**

**ORDER**

**PER MS. SUMITA PURKAYASTHA, MEMBER (T)**

Under consideration is the Application No. C.A.(CAA)-6/ND/2022 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening and holding the meeting of Shareholders and

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Creditors in relation to the Transferor and Transferee Companies for approval of the 'Scheme of Amalgamation', which shall take effect from the Appointed Date of 01.04.2021.

2. M/s Mochiko Footwear Private Limited (hereinafter referred as the **"Transferor Company")** having CIN no. U19200DL2009PTC194972 is a Private Limited company incorporated under Erstwhile Companies Act, 1956 on 07.10.2009. The registered office of the Transferor Company is situated at 101/E-36 Jawahar Park Laxminagar East Delhi-110092.

3. M/s Mochiko Shoes Private Limited (hereinafter referred as the **"Transferee Company"**) having CIN no. U19115DL2007PTC166984 is a company incorporated under Erstwhile Companies Act, 1956 on 14.08.2007. The registered office of the Transferee Company is situated at Plot 2A, First Floor KH No 294 Kehar Singh State, Saidulajb Village Lane No 2, New Delhi-110030.

4. That the present Petition has been jointly filed by all the Transferor and Transferee Companies. All the 'Transferor' and 'Transferee' Companies together are called 'Applicant Companies' hereinafter. That the Registered offices of all the Companies are in Delhi and therefore, the jurisdiction lies with this Bench.

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5. It is seen from the record that the Board of Directors of all the Applicant Company vide separate meetings held on 13.08.2021 have approved the proposed 'Scheme of Amalgamation'.

6. It is stated by the Applicant Companies that the following objectives are sought to be achieved by way of Amalgamation:

> *a. "The Proposed Scheme would enable sustainable long-term growth, profitability, cost reduction and efficiencies and continuous customer service through focused management attention as different set of skills arid resources would be available to meet competitive, regulatory environment and customer service requirements.*
> *b. Greater flexibility to markets and meet customer needs and will be able to compete more effectively.*
> *c. This further strengthening its market position in domestic and international markets."*

7. All the Applicant Companies have filed their Affidavits in compliance of Section 230(2)(a) of Companies Act 2013 submitting therein that none of the Applicant Companies are under any prosecution/ investigation/ inquiry under Companies Act 2013.

8. The Applicant Companies have also placed on record the Certificate from the Statutory Auditors conforming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act 2013.

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9. The Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have filed their latest Balance Sheets as on 31.03.2021.

10. The position regarding the Applicant Company wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised overleaf:

| Company | No. of Shareholders | Percentage of Shareholders given Consent (in value) | No. of Secured Creditors | Percentage of Unsecured Creditors given Consent (in value) | No. of Unsecured Creditors | Percentage of Unsecured Creditors given Consent (in value) |
|---|---|---|---|---|---|---|
| Transferor Company | 8 | 100% | Nil | Nil | 1 | 100% |
| Transferee Company | 9 | 100% | 2 | 100% | 215 | 93.91% |

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11. Since there are 2 Secured Creditors in Transferee Company and the consent has been provided by all of them. Hence, the requirement of convening their meeting does not arise.

12. Since there are 215 Un-Secured Creditors in Transferee Company and the consent has been 83 which makes 93.91% as comprising of the consent of the major Un-secured creditors. Hence, the requirement of convening their meeting does not arise.

13. In respect of shareholders of all the applicant companies, the applicants has placed on record, consent affidavits of all the shareholders of both the applicant companies. In view of the consent affidavits the requirement of convening of their respective meeting is hereby dispensed with.

**The Application is allowed in the aforesaid terms.**

-Sd-

**(SUMITA PURKAYASTHA)**
**Member (T)**

-Sd-

**(DHARMINDER SINGH)**
**Member (J)**